

**FORM F73
(RULE 17-1 (2))**

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Petitioner: _____

Respondent: _____

PETITION TO THE COURT

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

ON NOTICE TO:

[name and address of each person to be served]

The address of the registry is:

The petitioner(s) estimate(s) that the hearing of the petition will take _____
[time estimate]

Official language choice for *Divorce Act* proceedings (see Notice to Petitioner and Petition Respondent below):

[If the petition is seeking orders under the Divorce Act, check whichever one of the following boxes is correct.]

The petitioner(s) intend(s) to file documents, give evidence or make submissions in this proceeding in the

- ☐ English language
- ☐ French language
- ☐ English language and French language (bilingual)

This family law case is brought, for the relief set out in Part 1 below, by

[Check whichever one of the following boxes is correct and complete any required information.]

- ☐ the person(s) named as petitioner(s) in the style of proceedings above
- ☐ _____ (the petitioner(s))

If you intend to respond to this petition, you or your lawyer must

- (a) file a response to petition in Form F74 of the Supreme Court Family Rules in the above-named registry of this court within the time for response to petition described below, and
- (b) serve on the petitioner(s)
 - (i) 2 copies of the filed response to petition, and
 - (ii) 2 copies of each filed affidavit on which you intend to rely at the hearing.

Orders, including orders granting the relief claimed, may be made against you, without any further notice to you, if you fail to file the response to petition within the time for response.

Time for response to petition

A response to petition must be filed and served on the petitioner(s),

- (a) if you were served with the petition anywhere in Canada, within 21 days after that service,
- (b) if you were served with the petition anywhere in the United States of America, within 35 days after that service,
- (c) if you were served with the petition anywhere else, within 49 days after that service, or
- (d) if the time for response has been set by order of the court, within that time.

(1) The ADDRESS FOR SERVICE of the petitioner(s) is:

[Set out the street address of the address for service for each petitioner. One or both of a fax number and an e-mail address may be given as additional addresses for service.]

Fax number address for service (if any) of the petitioner(s): _____

E-mail address for service (if any) of the petitioner(s): _____

(2) The name and office address of the petitioner's(s') lawyer is:

Notice to Petitioner AND Petition Respondent: under **section 23.2 of the *Divorce Act***, you may choose to file pleadings or other documents, including this form, give evidence or make submissions in any ***Divorce Act*** proceeding in either of the two official languages of Canada (English or French).

Rule 1-1(1) of the Supreme Court Family Rules defines "***Divorce Act*** proceeding" as follows:

"*Divorce Act* proceeding" means a family law case in which an order is sought under the *Divorce Act*. "

Note to Petition Respondent: if you intend to file a response to petition (Form F74) in the official language other than the one used in this petition to the court (Form F73) served on you, you may file a Notice of Extension - Official Languages in Form F86.2 and receive an additional 10 days to file the response to petition in accordance with Rule 20-7 (8) of the Supreme Court Family Rules.

Claim of the Petitioner(s)

Part 1: ORDER(S) SOUGHT

[Using numbered paragraphs, set out the order(s) that will be sought at the hearing of the petition and indicate against which respondent(s) the order(s) is(are) sought.]

[if more space is required - attach page and state "See Attached"]

Part 2: FACTUAL BASIS

[Using numbered paragraphs, set out the material facts on which this petition is based.]

[if more space is required - attach page and state "See Attached"]

Part 3: LEGAL BASIS

[Using paragraphs numbered sequentially from Part 2 above, specify any rule or other enactment relied on and provide a brief summary of any other legal bases on which the petitioner(s) intend(s) to rely in support of the orders sought.]

[if more space is required - attach page and state "See Attached"]

Part 4: MATERIAL TO BE RELIED ON

[Using numbered paragraphs, list the affidavits served with the petition. Each affidavit included on the list must be identified as follows: "Affidavit #.....[sequential number, if any, recorded in the top right hand corner of the affidavit]..... of[name]....., made[date].....".]

[if more space is required - attach page and state "See Attached"]

Date: _____

☐petitioner

☐lawyer for petitioner(s)

[type or print name]

To be completed by the court only:

Order made

☐in the terms requested in paragraphs _____ of Part 1 of this petition

☐with the following variations and additional terms:

[if more space is required - attach page and state "See Attached"]

Date: _____

Signature of ☐Judge ☐Associate Judge